



File No.: EXP202302371

RESOLUTION OF RIGHTS PROCEDURE

After carrying out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: Ms. A.A.A. (hereinafter, the claimant) exercised the right of access before FORMACIÓN UNIVERSITARIA, S.A. (hereinafter, the respondent).

The claimant states that she was contacted on October 4, 2022, by the respondent for the offer of a course, based on her status as unemployed. She indicates that the person who contacted her knew her data, without the claimant having provided them, which led her to inquire about the origin of such data, to which her interlocutor replied that it came from the Ministry of Labor.

On December 1, 2022, she exercised, via email directed to the email address info@formacionuniversitaria.com, her right of access to her data, being contacted by the respondent by phone, although the claimant requested that she be responded to using the same medium through which she exercised her request.

After a month and a half from her request, she received an email dated January 25, 2023, in which they indicate that to exercise her request, she must send a form, which they provide, to the address info@formacionuniversitaria.com or, alternatively, by written request signed and addressed to FORMACIÓN UNIVERSITARIA, S.L. C/ Valparaíso, 5 C.P.: 41013 SEVILLA, attaching her ID.

"As you indicate in your email, you requested during the phone call on December 7 that you did not want to receive any more calls from our center. Therefore, since that same day, we have not contacted you, a matter clarified and confirmed in the same conversation that took place, and since that day you have not received any more calls from us.

In clarification of the email dated the 9th, in which you indicate '... I have requested my right of access...', we would like to point out that this right does not mean that we will not contact you, but rather that it is the right to address the data controller to know whether or not your personal data is being processed. We do not fully understand what you are requesting.

She provides a copy of the communications exchanged with the respondent.

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SECOND: In accordance with Article 65.4 of the LOPDGDD, the aforementioned complaint was forwarded to the respondent, so that it could analyze it and inform this Agency within one month of the actions taken to comply with the requirements established in the data protection regulations.

"Ms. A.A.A. did not send her request to info@formacionuniversitaria.com but to info99@formacionuniversitaria.com, which is not the channel indicated to her in the phone call and which is stated in the quality policy, and she has not sent a copy of her ID to verify the authenticity of her identity as it appears on our website and as was indicated to her by phone. As can be seen in the documentation provided by the claimant, she only addresses info@formacionuniversitaria.com to indicate that she does not want to send her ID, thus refusing to identify herself.

On January 25, 2023, an email was sent to Ms. A.A.A. with the forms to exercise her ARCOPOL rights and the email and method by which she should request it, given also the ambiguity with which the claimant expresses herself, we do not understand what she means (this email is attached as (DOCUMENT 1).

As of today, Ms. A.A.A. has not sent any document or copy of her ID to the email indicated on the website to exercise the ARCOPOL rights nor has she followed the instructions indicated in that email."

THIRD: This Spanish Agency for the Protection of Data requested additional information from the respondent,

"In accordance with Article 12.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights and Article 15 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, accreditation of the response sent to the claimant regarding the transfer of the complaint is requested, in which compliance with the duty to respond to the request for the exercise of the right of access is accredited.

In this regard, the Guidelines 01/2022 on the rights of data subjects - Right of access, version 2.0, adopted on March 28, 2023, indicate in section 53 the following (the translation is ours): "(...) However, if a data subject makes a request using a communication channel provided by the data controller that is different from the one indicated as preferable, such request will generally be considered effective and the data controller must process such request accordingly (...). Data controllers must make all reasonable efforts to ensure that the exercise of the rights of the data subject is facilitated (...)."

FOURTH: In response to that request for additional information, the respondent has provided a copy of a new email sent to the claimant, dated March 10, 2023

"After receiving your complaint to the Spanish Agency for the Protection of Data, we reiterate the content of the email sent on January 25, 2023, in which the procedure for exercising any rights over your data was indicated, and to date we have not received a copy of your ID to verify your identity."

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FIFTH: The result of the transfer procedure indicated in the previous Fact did not allow for the understanding that the claims of the complaining party were satisfied. Consequently, on April 25, 2023, for the purposes provided in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection agreed to admit the complaint for processing.

The aforementioned agreement granted the responding party a hearing procedure, so that within ten working days they could present the arguments they deemed appropriate, stating that "(...) our center reiterates the responses already given previously."

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD determines that "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

Finally, the Fourth Additional Provision "Procedure in relation to the powers attributed to the Spanish Agency for Data Protection by other laws" establishes that: "The provisions in Title VIII and its development rules shall apply to the procedures that the Spanish Agency for Data Protection must process in exercising the powers attributed to it by other laws."

II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for Data Protection is competent to perform the functions assigned to it in Article 57, among them, to enforce the Regulation and promote awareness among controllers and processors regarding their obligations, as well as to address complaints submitted by a data subject and investigate, as appropriate, the reasons for them. Correspondingly, Article 31 of the GDPR establishes the obligation of controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In the event that they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the

function of cooperating with that authority.

In accordance with this regulation, following the procedure provided in Article 65.4 of the LOPDGDD, prior to the admission for processing of the complaint regarding the exercise of the rights regulated in Articles 15 to 22 of the GDPR, which gives rise to this procedure, the complaint was transferred to the responding party for analysis, requiring them to respond to this Agency within one month and to demonstrate that they had provided the complainant with the appropriate response.

The result of that transfer did not allow for the understanding that the claims of the complaining party were satisfied. Consequently, on April 25, 2023, for the purposes provided in Articles 64.1 and 65 of the LOPDGDD, the complaint was admitted for processing. This admission for processing determines the opening of the present procedure for failure to address a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, according to which:

“When the procedure refers exclusively to the failure to address a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it shall be initiated by an admission agreement, which shall be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure shall be six months from the date on which the admission agreement was notified to the complainant. After that period, the interested party may consider their complaint accepted.”

Article 58.2 of the GDPR grants the Spanish Agency for Data Protection a series of corrective powers to correct any infringement of the GDPR, including “ordering the controller or processor to address the requests for the exercise of the rights of the data subject under this Regulation.”

III

Rights of Individuals Regarding Personal Data Protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability are contemplated.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to what is expressed in Recitals 59 and following of the GDPR.

In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of their rights by the data subject.

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rights, which shall be free of charge (without prejudice to the provisions of articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and to express its reasons in case it does not intend to comply with such request. The burden of proof of compliance with the duty to respond to the request for the exercise of rights made by the affected party lies with the controller.

The communication addressed to the data subject in connection with their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

IV

Right of Access

In accordance with the provisions of article 15 of the GDPR and article 13 of the LOPDGDD, "the data subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, if so, the right of access to the personal data."

Regarding the right of access to personal data, according to the provisions of article 13 of the LOPDGDD, when the exercise of the right refers to a large amount of data, the controller may request the affected party to specify the "data or processing activities to which the request refers." The right will

be deemed granted if the controller provides remote access to the data, considering the request fulfilled (although the data subject may request information regarding the aspects provided in article 15 of the GDPR).

The exercise of this right may be considered repetitive if exercised more than once within a six-month period, unless there is a legitimate reason for doing so. On the other hand, the request will be considered excessive when the affected party chooses a means other than the one offered that incurs a disproportionate cost, which must be borne by the affected party.

Like the other rights of the data subject, the right of access is a personal right. It allows the citizen to obtain information about the processing of their data, the possibility of obtaining a copy of the personal data concerning them that is being processed, as well as information, in particular, about the purposes of the processing, the categories of personal data concerned, the recipients or categories of recipients to whom the data may be communicated, the expected retention period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the information available about the source of the data (if not obtained directly from the data subject), the existence of automated decision-making, including profiling, and information about transfers of personal data to a third country or to an international organization. The possibility of obtaining a copy of the personal data being processed shall not adversely affect the rights and freedoms of others, that is, the right of access shall be granted in such a way that it does not affect third-party data.

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V

Conclusion

In the case analyzed here, from the examination of the documentation provided, and as it pertains to the present procedure, it has been established that the claiming party exercised their right of access and that the responding party has denied it, indicating that the claimant must complete the attached form, accompany it with a photocopy of their ID, and send it to one of the specified addresses, either electronic or postal.

It should be noted that, in these cases, where the request is not submitted through the provided channel or at the corresponding office, the receiving body must forward the request received to the assigned Data Protection Officer or the department responsible for managing such requests.

Furthermore, although it is appropriate for such a request to be directed to the address declared by the controller for the purpose of exercising the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 or to the central office, it is considered that the receipt of the request by any department or branch of the controller is a valid destination for it, in accordance with Article 12 of the LOPDGDD, which states:

"The data controller shall be obliged to inform the affected party about the means available to exercise the rights that correspond to them. The means must be easily accessible to the affected party. The exercise of the right may not be denied solely on the grounds that the affected party has chosen another means."

According to the European Data Protection Board, there are no specific requirements regarding the format of a request. The data controller must provide appropriate and easy-to-use communication channels that can be easily utilized by the interested party. However, the interested party is not obliged to use these specific channels and may instead send the request to an official contact point of the data controller. The controller is not obliged to act on requests sent to completely random or apparently incorrect addresses.

Thus, the guidelines of the aforementioned Committee indicate that:

"32. In the case of requests made by electronic means, the information shall be provided by electronic means whenever possible and unless the interested party requests otherwise (see Article 12, paragraph 3, of the GDPR). Article 15, paragraph 3, third sentence, complements this requirement in

the context of access requests by stating that the data controller is also obliged to provide the response in a commonly used electronic format, unless the interested party requests otherwise. Article 15, paragraph 3, presupposes that, for controllers who can receive electronic requests, it will be possible to respond to the request in a commonly used electronic format (for more details, see section 5.2.5). This provision refers to all the information that must be provided in accordance with Article 15, paragraphs 1 and 2. Therefore, if the interested party submits the access request by electronic means, all information must be provided in a commonly used electronic format. Format issues are developed in section 5. The data controller must, as always, apply the measures of..."

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adequate security, particularly when it concerns a special category of personal data (see below, in point 2.3.4).

(...)

2.3.4. Compliance with data security requirements

40.

Since the communication and provision of personal data to the data subject is a processing operation, the data controller is always required to implement appropriate technical and organizational measures to ensure a level of security appropriate to the risk of the processing (see Article 5(1)(f), Article 24, and Article 32 of the GDPR). This applies regardless of the manner in which access is provided. In the case of non-electronic transmission of data to the data subject, depending on the risks presented by the processing, the data controller may consider using registered mail or, alternatively, offer, but not require, the data subject to collect the file in person against signature directly from one of the data controller's establishments. If, in accordance with Article 12(1) and (3), the information is provided by electronic means, the data controller will choose electronic means that meet the data security requirements. Also, in the case of providing a copy of the data in a commonly used electronic format (see Article 15(3)), the data controller will take into account the data security requirements when choosing the means of transmission of the electronic file to the data subject. This may include the application of encryption, password protection, etc. To facilitate access to encrypted data, the data controller must also ensure that appropriate information is provided so that the data subject can access the decrypted information. In cases where data security requirements necessitate end-to-end encryption of emails, but the data controller can only send a regular email, the data controller will have to use other means, such as sending a USB drive by registered postal mail to the data subject.

(...)

3.3. Assessment of proportionality regarding the authentication of the requesting person

70.

As previously indicated, if the data controller has reasonable doubts about the identity of the requesting person, they may request additional information to confirm the identity of the data subject. However, the data controller must simultaneously ensure that they do not collect more personal data than necessary to allow the authentication of the requesting person. Therefore, the data controller will carry out a proportionality assessment, which must take into account the type of personal data being processed (for example, whether it involves special categories of data or not), the nature of the request, the context in which the request is made, as well as any harm that may result from incorrect disclosure. When assessing proportionality, it should be remembered that unnecessary data collection must be avoided.

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excessive data collection, while ensuring an adequate level of security in processing."

(...)

157. Article 12, paragraph 3, of the GDPR requires the data controller to provide information to the data subject about the measures taken in relation to a request under Article 15 without undue delay and, in any case, within one month of receiving the request. This period may be extended by a maximum of two months, taking into account the complexity and number of requests, provided that the data subject has been informed of the reasons for the delay within one month of receiving the request. This obligation to inform the data subject about the extension and its reasons should not be confused with the information that must be provided without undue delay and, at the latest, within one month when the data controller does not take action on the request, as detailed in Article 12, paragraph 4, of the GDPR.

158. The data controller will respond and, in general, provide the information required by Article 15 without undue delay, meaning that the information must be provided as soon as possible. This means that if it is possible to provide the requested information in a shorter time frame than one month, the controller must do so. The EDPB also considers that the timeline for responding to the request in some situations must be adapted to the retention period in order to facilitate access.

159. The period begins when the data controller has received a request under Article 15, that is, when the request reaches the data controller through one of its official channels. It is not necessary for the data controller to be aware of the request. However, when the data controller needs to communicate with the data subject due to uncertainty about the identity of the person making the request, there may be a suspension of time until the data controller has obtained the necessary information from the data subject, provided that the data controller has requested additional information without undue delay.

The same applies when a data controller has asked a data subject to specify the processing operations referred to in the request, when the conditions set out in Recital 63 are met." The aforementioned rules do not allow the request to be disregarded as if it had not been made, leaving it without the response that the controllers are obliged to issue, even in the event that there are no data in the files or even in those cases where the requirements set forth are not met, in which case the recipient of the request is also obliged to require the rectification of the observed deficiencies or, if applicable, to deny the request with justification indicating the reasons why the right in question should not be considered. Therefore, the request made obliges the controller to provide an express response in all cases, using any means that justifies the receipt of the response.

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Given that a copy of the necessary communication that must be directed to the claimant informing them about the decision made regarding the request for the exercise of rights is not attached, it is appropriate to uphold the claim that initiated this procedure.

In view of the cited provisions and other generally applicable regulations, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO UPHOLD the claim made by Ms. A.A.A. considering that the provisions of Article 15 of the GDPR have been infringed and to urge FORMACIÓN UNIVERSITARIA, S.A. with NIF A91164905, to send to the claimant, within ten working days following the notification of this resolution, a certification addressing the requested right or a reasoned denial indicating the causes for which the request cannot be granted, in accordance with the provisions established in the body of this resolution. The actions taken as a result of this Resolution must be communicated to this Agency within the same period. Non-compliance with this resolution could result in the commission of an infringement of Article 83.6 of the GDPR, classified as very serious for the purposes of prescription in Article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with Article 58.2 of the GDPR.

SECOND: NOTIFY this resolution to Ms. A.A.A. and to FORMACIÓN UNIVERSITARIA, S.A.

In accordance with the provisions established in Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6

of the LOPDGDD, and in accordance with the provisions established in Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Administrative Court of the National Court, in accordance with the provisions of Article 25 and in section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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